

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #02	CCRB Case #: 201903882	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 12/13/2018 3:32 PM, Thursday, 12/13/2018 3:32 PM	Location of Incident: § 87(2)(b); and the 60th Precinct stationhouse	18 Mo. SOL 1/28/2021	Precinct: 60		
Date/Time CV Reported Tue, 05/07/2019 9:16 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/07/2019 9:16 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Martin Dicostanzo	10536	956595	060 PCT
2. POM Gabriel Keinig	18190	958746	060 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Luz Owens	11034	954201	060 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Gabriel Keinig	Abuse: Police Officer Gabriel Keinig entered § 87(2)(b) in Brooklyn.	A . Unsubstantiated
B . POM Martin Dicostanzo	Abuse: Police Officer Martin DiCostanzo entered § 87(2)(b) in Brooklyn.	B . Unsubstantiated
C . POM Gabriel Keinig	Abuse: Police Officer Gabriel Keinig searched § 87(2)(b) in Brooklyn.	C . Unsubstantiated
D . POM Martin Dicostanzo	Abuse: At the 60th Precinct stationhouse, Police Officer Martin DiCostanzo did not obtain medical treatment for § 87(2)(b)	D . Unsubstantiated

Case Summary

On May 7, 2019, § 87(2)(b) filed this complaint with the CCRB via telephone.

On December 13, 2018, at approximately 3:32 p.m., § 87(2)(b) was alone in her apartment at § 87(2)(b) in Brooklyn when Police Officer Martin DiCostanzo, Police Officer Gabriel Keinig, and Police Officer Luz Owens of the 60th Precinct came to her apartment because her neighbor, § 87(2)(b) accused her of stealing her packages. § 87(2)(b) opened her door, and Police Officer Keinig and Police Officer DiCostanzo allegedly stepped into the apartment and stood by the door, preventing § 87(2)(b) from closing it (**Allegations A and B – Abuse of Authority: Entry of Premises, unsubstantiated**). § 87(2)(b) initially gave Police Officer Keinig permission to search the apartment, but he allegedly continued to search the apartment after she asked him to stop (**Allegation C – Abuse of Authority: Search of Premises, unsubstantiated**). § 87(2)(b) was arrested for petit larceny (Board Review 17).

At the 60th Precinct stationhouse, § 87(2)(b) began to have difficulty breathing and asked for her asthma pump, and Police Officer DiCostanzo allegedly told her that she would be released soon, and he did not give her the asthma pump or otherwise obtain medical treatment for her (**Allegation D – Abuse of Authority: Refusal to Obtain Medical Treatment, unsubstantiated**). § 87(2)(b) was released from the stationhouse with a Desk Appearance Ticket (Board Review 18).

Surveillance footage that captures the hallway of the § 87(2)(b) Floor was obtained from § 87(2)(b) (IA #99, Board Review 01). Police Officer DiCostanzo, Police Officer Keinig, and Police Officer Owens were not assigned body-worn cameras at the time of the incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Gabriel Keinig entered § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: Police Officer Martin DiCostanzo entered § 87(2)(b) in Brooklyn.

§ 87(2)(b) provided telephone statements on May 24, 2019 (Board Review 02) and August 8, 2019 (Board Review 03), and she was interviewed on May 31, 2019 (Board Review 04). § 87(2)(b) who was in the cell area with § 87(2)(b) provided a telephone statement on July 1, 2019 (Board Review 05). § 87(2)(b) provided a telephone statement on July 12, 2019 (Board Review 06). LaserShip deliveryman § 87(2)(b) provided a telephone statement on July 18, 2019 (Board Review 07). Police Officer DiCostanzo was interviewed on September 4, 2019 (Board Review 08). Police Officer Keinig was interviewed on September 11, 2019 (Board Review 09). Police Officer Owens was interviewed on October 1, 2019 (Board Review 10).

§ 87(2)(b) stated that when the officers arrived at her apartment, she opened her door and told them that other officers had previously responded to the alleged package and told her to “forget it.” § 87(2)(b) began to push her door closed, but Police Officer Keinig stepped into the apartment in stood in such a manner that blocked the door, preventing her from closing it. In her telephone statement on May 24, 2019, § 87(2)(b) stated that Police Officer DiCostanzo also

stepped into the apartment at this moment. The officers did not ask § 87(2)(b) if they could enter the apartment. § 87(2)(b) then invited Police Officer Keinig into the apartment to look for the packages. She had not offered her consent or invitation to enter before this moment.

§ 87(2)(b) stated that an officer asked § 87(2)(b) about the packages, and then § 87(2)(b) invited the officers inside to check for the packages. She stated that no officer stood in § 87(2)(b)'s doorway in such manner that prevented her from closing her door before § 87(2)(b) invited them inside.

§ 87(2)(b) was not on the § 87(2)(b) Floor with § 87(2)(b) and the officers.

The surveillance footage from the § 87(2)(b) floor (Board Review 01) skips forward at several points, and it does not capture the officers' initial entry into § 87(2)(b)'s apartment. § 87(2)(b)'s door and the interior of her apartment are not visible in this footage, and § 87(2)(b) is not seen in this footage until she exits her apartment. There is no sound in this footage. At runtime 12:29 (02:38:23 p.m.), Police Officer DiCostanzo, Police Officer Keinig, and Police Officer Owens are seen standing outside of § 87(2)(b)'s apartment, which is the door on the right at the end of the hall. However, at runtime 12:33, the footage skips forward to 12:47:39 p.m., and the officers are no longer visible. At runtime 14:02, Police Officer DiCostanzo is seen walking towards § 87(2)(b)'s apartment, and at runtime 14:07, Police Officer Owens steps out of the apartment.

Police Officer Keinig's, Police Officer DiCostanzo's, and Police Officer Owens' statements were generally consistent. They each stated that they entered the apartment after § 87(2)(b) invited them inside, and they denied stepping into her apartment or preventing her from closing her door before she extended this invitation.

§ 87(2)(g)

It is therefore recommended that
Allegations A and B be unsubstantiated.

Allegation (C) Abuse of Authority: Police Officer Gabriel Keinig § 87(2)(b)
in Brooklyn.

§ 87(2)(b) stated that after she invited Police Officer Keinig into the apartment to search for the packages, Police Officer Keinig walked further inside while Police Officer DiCostanzo remained by the front door. Police Officer Keinig examined some empty boxes that § 87(2)(b) stated that she used to move into the apartment. Police Officer Keinig moved towards § 87(2)(b)'s closet, and § 87(2)(b) said, "That's it." Police Officer Keinig did not open the closet, but he allegedly continued to look around the apartment for approximately five more minutes.

Police Officer Keinig stated that he did not recall exactly how § 87(2)(b) phrased her invitation for him to enter the apartment. He denied that any officer searched the apartment. Police Officer Keinig stated that he saw some boxes in plain view in the apartment, but it was unclear what the boxes contained or from where they came. Police Officer Keinig denied

examining the boxes' labels and being in possession of any of § 87(2)(b)'s items. He stated that § 87(2)(b) did not ask him to leave the apartment at any point.

Both Police Officer DiCostanzo and Police Officer Owens stated that no officer searched § 87(2)(b)'s apartment or any of her personal effects.

§ 87(2)(g)
It is therefore recommended that **Allegation C** be **unsubstantiated**.

Allegation (D) Abuse of Authority: At the 60th Precinct stationhouse, Police Officer Martin DiCostanzo did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) stated that approximately two hours after she was placed in a cell at the 60th Precinct stationhouse, she experienced shortness of breath. Police Officer DiCostanzo did not appear to notice that § 87(2)(b) had difficulty breathing. After having trouble breathing for approximately one to two minutes, § 87(2)(b) allegedly told Police Officer DiCostanzo twice within seven to ten minutes that she needed to use her asthma pump. On both occasions, Police Officer DiCostanzo allegedly said he could not let her use her asthma pump.

§ 87(2)(b) stated that she shared the cell area with an apparently Russian male who had been arrested for pills. A search of BADS revealed an arrest report for § 87(2)(b) (Board Review 11), who was arrested on December 13, 2018 for § 87(2)(b). The lone other unsealed arrest report for § 87(2)(b) within the confines of the 60th Precinct on December 13, 2018, was for § 87(2)(b) who was arrested at 10:31 p.m., several hours after § 87(2)(b) was released from the stationhouse (Board Review 11).

§ 87(2)(b) stated that he recalled sharing the cell area with one woman. § 87(2)(b) did not recall anything about this woman, including anything she may have done or said. § 87(2)(b) did not recall whether the woman in the cell area complained of having difficulty breathing or experiencing an asthma attack, nor did he recall whether anyone asked for an asthma pump or medical attention.

Police Officer DiCostanzo stated that § 87(2)(b) did not appear to have difficulty breathing and that she did not ask him for an asthma pump or medical attention.

In the Command Log (Board Review 12), the desk sergeant wrote at 3:50 p.m., "PO DiCostanzo present w/ § 87(2)(b) physical good, mental app. normal, no med. attn., no diabetes." There is no indication in the Command Log that § 87(2)(b) experienced any medical distress.

Patrol Guide Procedure 210-04 (Board Review 13) states that in potentially life-threatening situations, such as when a prisoner has an apparent heart attack or breathing difficulties, the prisoner must be removed to the nearest hospital.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g) As such, it is recommended that **Allegation D** be unsubstantiated.

Allegations Not Pleaded

- § 87(2)(b) initially stated that she learned from an unknown neighbor that while she was in police custody at the 60th Precinct stationhouse, officers went to her apartment, opened her door with her key, and entered the apartment. When she returned home, she food, clothes, jewelry, and paperwork were missing from the apartment. However, in her telephone statement on August 8, 2019, § 87(2)(b) stated that the people who entered her apartment were gang members who were sent by police officers. At no point in the video from § 87(2)(b), which ends at 6:00 p.m., do officers or civilians enter or attempt to enter § 87(2)(b)'s apartment after she is arrested. § 87(2)(g).
- § 87(2)(b) stated that she was told to remove her gold necklace at the 60th Precinct stationhouse, and that when it was returned to her, one of its links was broken. However, § 87(2)(b) noted that she did not see her necklace being broken. § 87(2)(g).

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one other CCRB complaint and has been named as a victim in one other allegation (Board Review 14).
 - § 87(2)(b)
- Police Officer Gabriel Keinig has been a member-of-service for four years and has been a subject in one other CCRB complaint and two other allegations, neither of which were substantiated. § 87(2)(g).
- Police Officer Martin DiCostanzo has been a member-of-service for five years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of October 31, 2019, the Office of the New York City Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 15).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(b) stated that the charges against her stemming from this incident have been dismissed. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 02

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date